

ORDINANCE NO. 4
(Series 2026)

AN ORDINANCE ADOPTING BY REFERENCE THE 2025 COLORADO WILDFIRE RESILIENCY CODE (CWRC), INCLUDING APPENDICES A THROUGH C, PROVIDING PENALTIES FOR VIOLATIONS OF THE SAME, AND MAKING CONFORMING AMENDMENTS TO TITLE 15 OF THE GEORGETOWN MUNICIPAL CODE

WHEREAS, the Town of Georgetown is a Colorado municipal corporation operating under a Territorial Charter and governed by its Board of Selectmen; and

WHEREAS, the Georgetown Board of Selectmen ("Board") is authorized by the Territorial Charter and the Colorado Revised Statutes to enact ordinances for the preservation of the public health, safety, and welfare; and

WHEREAS, pursuant to C.R.S. § 31-15-601, the Town has the authority to adopt building and fire regulations; and

WHEREAS, under this authority, the Town, acting by and through its Board of Selectmen (the "Board"), previously adopted by reference a number of technical building codes, codified within Title 15 of the Georgetown Municipal Code ("Code"); and

WHEREAS, the state of Colorado has promulgated the 2025 Colorado Wildfire Resiliency Code ("CWRC"), the stated purposes of which include to mitigate the risk to life and structures from intrusion of fire from wildland fire exposures and fire exposures from adjacent structures, to mitigate structure fires from spreading to wildland fuels, to prevent the occurrence of fires and to provide adequate fire protection facilities to control the spread of fire in wildland-urban interface areas, all in the interests of safeguarding life and protecting property; and

WHEREAS, the Board finds that the adoption of the 2025 CWRC by reference would promote the health, safety, and welfare of Town residents, property owners, business operators and visitors by adding special regulations to the Code to mitigate the unique fire- and life-safety hazards presented by the Town's wildland-urban interface area; and

WHEREAS, Part 2, Article 16, Title 31 of the Colorado Revised Statutes requires any ordinance that adopts another code by reference to include and expressly state the penalties for violating the adopted code; and

WHEREAS, a public hearing on this Ordinance will be conducted on second reading, on May 26, 2026, and proper notice thereof shall be given in accordance with C.R.S. § 31-16-203; and

WHEREAS, certified copies of the 2025 CWRC were filed with the Town Clerk at least fifteen (15) days prior to public hearing on this Ordinance and such code remains open to public inspection and purchase in accordance with C.R.S. § 31-16-206; and

WHEREAS, the Town wishes to adopt by reference the 2025 CWRC, state the penalties for violations of the same and make conforming amendments to the Georgetown Municipal Code.

NOW THEREFORE, BE IT ORDAINED by the Board of Selectmen of the Town of Georgetown, Colorado, as follows:

Section 1. The above and foregoing Recitals are incorporated herein by reference and are adopted as findings and determinations of the Board.

Section 2. Title 15 of the Code, concerning building and safety codes the Town has adopted by reference, is hereby amended by the addition of a new subsection 15.20.010(a), (b), and (c) to read in its entirety as follows:

- (a) Colorado Wildfire Resiliency Code, 2025, Version 1.0, including Appendices A, B and C, as published by Colorado Department of Public Safety, Division of Fire Prevention & Control, 1697 Cole Blvd, Unit 200, Lakewood, CO 80401.
- (b) Throughout the CWRC, where [NAME OF JURISDICTION] appears, insert the term "Town of Georgetown."
- (c) CRWC Section 103.1, concerning enforcement, is amended by inserting the phrase "Building Department" for [INSERT NAME OF DEPARTMENT].

Section 3. As required by CRS 31-16-204, the following existing penalty provisions of the Georgetown Municipal Code that apply to CWRC violations are fully set forth below under section 15.20.050 and a new-subsections (a) – (f) as follows:

Sec. 15.20.050. - Penalties.

- (a) In this Section, violation of this Code means:
 - (1) Doing an act that is prohibited or made or declared unlawful, an offense or a misdemeanor by ordinance or by rule or regulation authorized by ordinance;
 - (2) Failure to perform an act that is required to be performed by ordinance or by rule or regulation authorized by ordinance; or
 - (3) Failure to perform an act if the failure is declared a misdemeanor, an offense or unlawful by ordinance or by rule or regulation authorized by ordinance.
- (b) In this Section, violation of this Code does not include the failure of a Town officer or Town employee to perform an official duty unless it is provided that failure to perform the duty is to be punished as provided in this Section.
- (c) Violations of this Title 15 of the Code are noncriminal offenses and are civil matters. Trial of noncriminal offenses shall be by the court. No defendant found civilly liable for a non-criminal offense shall be punished by imprisonment for such offense, but may be fined an amount not to exceed two thousand six hundred fifty dollars (\$2,650.00). With respect to violations of

this Code which are continuous, a separate offense shall be deemed committed for each day the violation occurs or continues.

- (d) The imposition of a penalty does not prevent revocation or suspension of a license, permit or franchise.
- (e) Violations of this Code which are continuous may be abated by injunctive or other equitable relief. The imposition of a penalty does not prevent equitable relief.

Section 4. Any and all Ordinances or parts thereof in conflict or inconsistent herewith are, to the extent of such conflict or inconsistency, hereby repealed; provided, however, that the repeal of any such Ordinance or part thereof shall not revive any other section or part of any Ordinance heretofore repealed or superseded.

Section 5. Should any one or more sections or provisions of this Ordinance be judicially determined invalid or unenforceable, such judgment shall not affect, impair or invalidate the remaining provisions of this Ordinance, the intention being that the various provisions are severable.

Section 6. Effective Date. This ordinance shall take effect upon final adoption as provided by Section 5.26 of the Territorial Charter.

INTRODUCED, READ, APPROVED AND ORDERED POSTED IN FULL ON FIRST READING on the 28 day of April 2026.

INTRODUCED ON SECOND READING, FINALLY ADOPTED AND ORDERED POSTED AFTER PUBLIC HEARING on the 26 day of May 2026

TOWN OF GEORGETOWN

By: Georgia Koford
Georgia Koford, Police Judge

ATTEST:

BK
Brigitte Korte, Town Clerk

Posted up in full on the Town's website and at Town Hall and two (2) other designated posting locations within the limits of the Town after final adoption, in accordance with Section 5.26 of the Territorial Charter.

BK
Brigitte Korte, Town Clerk

Date: July 7, 2026